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No. 96-1793

In The

Supreme Court of the United States

October Term, 1996

CEDAR RAPIDS COMMUNITY SCHOOL DISTRICT,

Petitioner,

vs.

GARRET F., A Minor By His Mother and Next Friend, CHARLENE F.,

Respondent.

On Petition for a Writ of Certiorari to the United States Court of Appeals for the Eighth Circuit

RESPONDENT'S BRIEF IN OPPOSITION

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Respondent requests that the Court deny the Petition for Writ of Certiorari seeking review of an opinion in the United States Court of Appeals for the Eighth Circuit.

STATEMENT OF THE CASE

A. Course of Proceedings

The Petitioner, Cedar Rapids Community School District (the District) did file suit in the United States District Court for the Northern District of Iowa which sought to reverse the December 16, 1994, ruling by the Iowa Department of Education that the District was required under both state and federal law to reimburse Charlene F. for the costs of Garret F.'s healthcare costs while attending the District's schools. The Department of Education ruled that the health services needed by Garret F. to allow him to participate in a free appropriate public education constituted "related services" under federal law and "support services" under Iowa law. The Department of Education's ruling was carefully reasoned and findings of facts were made that whether the "bright line" test of *Tatro* was followed or the standards of the cases *Detsel, Bevin H.* and *Shannon M.*[1] were applied, the services were related services under federal law and support services under Iowa law and thus must be provided by the District.

The District chose to appeal this decision to the United States District Court for the Northern District of Iowa rather than state court. 20 U.S.C. § 1415(e). Both parties moved for summary judgment. On March 22, 1996, the United States District Court for the Northern District of Iowa, Honorable

1. *Detsel v. Bd. of Education of Auburn*, 637 F. Supp. 1022 (N.D.N.Y. 1986), *aff'd*, 820 F.2d 587 (2nd Cir.) (per curiam), *cert. denied*, 484 U.S. 981 (1987); *Bevin H. by Michael H. v. Wright*, 666 F. Supp 71 (W.D. Pa. 1987); *Granite School Dist. v. Shannon M.*, 787 F. Supp 1020 (D. Utah 1992).

Edward J. McManus, granted Garret F.'s Motion for Summary Judgment and denied that of the District. The court held that the IDEA required the District to provide the health services. The court stated that: "in accordance with the appropriate standards, in light of *Tatro*, and for the reasons set forth in the ALJ's thorough decision" Garret F.'s motion should be granted. Judgment was entered in favor of Garret F. on March 22, 1996. The District appealed to the United States Court of Appeals for the Eighth Circuit which affirmed on February 7, 1997.

B. Statement of Facts

In 1987, when Garret F. was four years old, he was injured in a motorcycle accident. While his mental abilities were unaffected, he did sustain a spinal cord injury which left him quadriplegic and ventilator dependent. Shortly thereafter he started to attend kindergarten in the District. He has remained in attendance at schools in the District ever since. During the school day he requires a personal attendant within hearing distance of him at all times to see that certain intermittent healthcare needs are met. These needs include: urinary bladder catheterization about once a day; suctioning of his tracheotomy as needed, generally once a day; ambu-bagging administration during suctioning and in the event that his ventilator would malfunction; assistance with food and drink; familiarity with and ability to troubleshoot the ventilator; ability to observe his breathing to determine if air is going into his lungs and the ability to recognize signs of autonomic hyperreflexia; and repositioning. Garret F.'s family provided an attendant to provide these needs from the Fall of 1988 through the Spring of 1993.

The District has, at its expense, provided a teacher's associate who did not provide any nursing assistance or attend to any of Garret F.'s needs set forth above. For the 1988-1989 school year, the needs were provided by Garret F.'s aunt, Stephanie

Madison. Ms. Madison was 18 years old when the school year began and had no registered nurse (RN) or licensed practical nurse (LPN) certification. She had not had any prior nursing experience.

From the Fall of 1989 through the Spring of 1993, the needs were met by an LPN paid by the family. Since the time of the appeal of the 1993 IEP through the present the family continues to pay for these needs either through its own funds or private medical insurance.

Charlene F. asked the District to provide, at its expense, an attendant since the Fall of 1988. The District refused. Following its 1993 refusal, Garret F. filed an appeal with the Iowa Department of Education. The Department, relying on both the IDEA and the Iowa Special Education Laws, conducted a three day hearing, took evidence and ruled in favor of Garret F. It was from this decision that the District appealed.

The evidence is undisputed that none of the required services need to be performed by a physician. A non-certified person or a LPN with appropriate training can perform all the items of care which need to be done for Garret F. while at school. Frey family members provide the same services to Garret F. at night and over the weekends that an LPN provides. Garret F.'s friends provide many of these services to him when they are visiting him at home.

Prior to the trial, the District obtained a ruling from the Iowa Board of Nursing which is discussed at pages 3 and 4 of the Petition for Writ of Certiorari. The ruling was based, at least in part, on a misstatement of Garret's medical condition by the District. Witnesses for the District testified that in documents submitted to the Iowa Board of Nursing they indicated that the stability condition for intervention for

autonomic hyper-reflexia was unstable. Trial Transcript (Tr.) at 75-76; Exhibit (Exh.) 125. In contrast, the unrefuted medical testimony at trial was that the hyper-reflexia condition was stable and that there would be no medical reason to use the term "unstable" to describe the stability of the intervention for autonomic hyper-reflexia. Tr. at 76. Thus, the District's increased cost argument based on the ruling from the Iowa Board of Nursing, appears to be an argument of their own making based upon inaccurate medical information and should be entitled to no weight.

Further, for the 1993-1994 school year, the teaching associate that the District hired was an LPN. Thus, if that individual was to continue and provide the health care services required, there would be no additional cost to the District. If an RN was hired by the District, the teacher associate would not be necessary since the RN could perform all of the services that the teaching associate currently does. Tr. at 278-79. According to the District, the teacher associate's compensation is $9,548 and the cost to hire a first year RN would be approximately $27,981.79. Tr. at 523-25. Thus, even using the District's "worst case scenario", the additional cost to the District would be approximately $17,000 per year. At the time of trial the District received total revenue for Garret F.'s attendance at the District of $12,600. Tr. at 514.

The total funding received by the District for its 17,500 students (before extra money for special education) was $63 million dollars for the 1993-1994 school year. Tr. at 513-14. In addition, the District receives additional funding above and beyond that amount for the 2,200 special education students within the District. Tr. 533-34. The extra special education money which is received is put into a category within the District budget and then subgrouped with other categories. Tr. 534. The District does not limit the expenditure on any specific student for this extra special education funding. Tr. at 604.

The District goes to great lengths to paint a bleak picture of its finances. However, the record in this case is clear that there is no financial impact on the District when it "overspends" its special education budget. When this happens the District incurs what is known as a deficit. Tr. at 588. At this point, the District has three options to correct the deficit. It can petition the School Budget Review Committee to either: (1) tax locally for it; or (2) take it out of the district cash reserve; or (3) receive additional funds from the State of Iowa. Tr. at 588. Even in instances where the special education budget has been overspent all special education budgetary obligations are met. Tr. at 590. During the five years that Dr. Austin Mueller had been in charge of special education, all special education budgetary overrides have been met. Tr. at 590. If the special education budget ends the year in surplus, the surplus money goes back to the State of Iowa and then is redistributed back to districts which have deficits. Tr. at 591-92. There is no spending limit legally imposed upon a school district in regard to an individual student with disabilities. Tr. at 604.

Consistent with the medical evidence that none of the services need to be provided by a physician the District does provide many of the services Garret needs to other students who attend the District including wheelchair confined students: intermittent catheterization, assistance in consuming food and drinking water and beverages, monitoring blood sugar levels for some of its diabetic students, suctioning of tracheotomies, tube feeding, and positioning services. Tr. At 314-15; 332-36; 381-83.

The record at trial was that Districts in states other than Iowa are providing the services which Garret needs to ventilator dependent children with non-licensed personnel. Tr. at 340-41. The District contacted a number of states including Louisiana, Massachusetts, Illinois, Minnesota and New Mexico

and determined that other states provided a whole gamut of care through non-licensed personnel ranging up to registered nurses. Tr. at 341-43. This included non-licensed, non-professional personnel. Tr. at 364-65.

C. Perceived Misstatement of Fact in Petition

Garret F. believes several factual misstatements need to be addressed.

At page 6 of the Petition for Writ of Certiorari the District states "the Eighth Circuit has relieved from responsibility those who would traditionally bear these expenses and shifted the burden onto already under-funded public school districts." In contrast, the factual record at trial is that the District had adequate funding to pay for the services required by the Eighth Circuit whether these were performed by an LPN at a reduced cost or an RN at a slightly higher cost. Tr. at 588-92.

At page 7 of the Introduction the District claims "the services here fall well outside the range of traditional school nursing services." In contrast, the factual record at trial confirmed that school nurses for the District have performed virtually all of the services required by Garret F. and continue to perform them for other students within the District. Tr. at 314-15; 332-36; 381-83.

On page 8 the District again makes the broad statement that "overburdened school districts throughout the country may have to redirect significant portions of their budgets to handle these catastrophic medical expenses." This is in direct contrast to the record in this case which was that the District had more than enough money to perform and supply the services at issue. Tr. at 588-92. Likewise, on page 17 the District makes broad generalizations that the 'costs are staggering" for the services at

issue. In contrast, the factual record in this case was that the additional expense, if any, would be $17,000 per year. Tr. at 523-25; Appendix C at 36a. Further, there was evidence that other school districts are providing these services with a range of health care professionals at their own expense. Tr. at 341-43; 364-65.

REASONS FOR DENYING THE WRIT

I.

THE JUDGMENT IN FAVOR OF GARRET F. WOULD BE AFFIRMED EVEN IF THE EIGHTH CIRCUIT'S USE OF AND APPLICATION OF *TATRO* WAS IN ERROR.

The Petition for Writ of Certiorari should be denied for several reasons. First, the decision of the Administrative Law Judge was based both on state and federal law. It was also based on a series of fact findings that the needed services are "related services" under federal law whether or not the "bright line" rule was employed or not. The well-established rule in the Eighth Circuit Court of Appeals is that the Court can affirm on any grounds supported in the record even if not addressed or relied upon by the Federal District Court. *See, e.g., Smith v. Copeland*, 87 F.3d 265, 267-68 (8th Cir. 1996); *O'Hagan v. United States*, 86 F.3d 776, 779 n.2 (8th Cir. 1996); and *Phillips v. Marist Society of Washington Prov.*, 80 F.3d 274, 275 (8th Cir. 1996).

This well-established rule applies in the United States Supreme Court as well. *United States v. Carignan*, 342 U.S. 36, 38-39, 72 S. Ct. 97, 96 L. Ed. 48, 50-51 (1951); *Thigpen v. Roberts*, 468 U.S. 27, 28, 104 S. Ct. 2916, 82 L. Ed. 2d 23, 28 (1984). In *Thigpen*, the Supreme Court stated:

> Although the court below and the petition for certiorari addressed only the double jeopardy issue, we may affirm on any ground that the law and the record permit and that will not expand the relief granted below.

468 U.S. at 29-30 (citing *United States v. New York Telephone Co.*, 434 U.S. 159, 166 n.8, 98 S. Ct. 364, 54 L. Ed. 2d 376 (1977)).

In *New York Telephone Co.*, the Supreme Court stated:

> We have the discretion to consider [issues not even encompassed with the question posed in the Petition for Certiorari] because the prevailing party may defend the judgment on any ground which the law and the record permit that would not expand the relief it has been granted.

434 U.S. at 166 n.8, 54 L. Ed. 2d at 385 (citing *Langnes v. Green*, 282 U.S. 531, 538-39, 51 S. Ct. 243, 75 L. Ed. 520 (1931)).

Judgments, such as the present one, which are sustainable on non-federal grounds should result in a denial of a Writ of Certiorari. *See, e.g., Jankovich v. Indiana Toll Road Commission*, 379 U.S. 487, 488-89, 13 L. Ed. 2d 439, 441-42, 85 S. Ct. 593 (1965); *Wilson v. Loew's Inc.*, 355 U.S. 597, 598, 2 L. Ed. 2d 519, 521, 78 S. Ct. 526 (1958).

A case which compels denial of certiorari in this case is *SS Monrosa v. Carbon Black Export Inc.*, 359 U.S. 180, 3 L. Ed. 2d 723, 79 S. Ct. 710, *reh. den.*, 359 U.S. 999, 3 L. Ed. 2d 986, 79 S. Ct. 1115 (1959).

The *SS Monrosa* case involved a libel in admiralty in the United States District Court for the Southern District of Texas. 359 U.S. at 181, 3 L. Ed. 2d at 724.

The Court enunciated an important rule which applies in this case:

> While this Court decides questions of public importance, it decides them in the context of meaningful litigation. Its function in resolving conflicts among the Courts of Appeals is judicial, not simply administrative or managerial. Resolution here of the extent to which these bill of lading provisions may be given effect by our courts can await a day when the issue is posed less abstractly.

359 U.S. 184, 3 L. Ed. 2d at 726.

In this case, it is clear that the administrative law judge found in favor of Garret F. on both state and federal grounds. The state grounds were pursuant to Iowa Code § 256B.2 (1993) and relevant Iowa Administrative Code provisions. Apx. C. The District Court adopted the "reasoning of the ALJ" and ruled in favor of Garret F. on federal grounds both under a *Tatro* and non-*Tatro* approach.

The Eighth Circuit ruled in favor of Garret F. on the grounds of *Tatro* only. The non-*Tatro* federal grounds and the state court grounds remain in support of the Circuit's ruling and serve as justification to deny certiorari in this case.

II.

THE EIGHTH CIRCUIT RULING CLEARLY FOLLOWS AND APPLIES *TATRO* AND DOES NOT CREATE AN ILLOGICAL DEFINITION OF MEDICAL SERVICES.

Contrary to the assertion of the District, the Court of Appeals' ruling does nothing more than apply and enforce the plain language of *Tatro* and 20 U.S.C. § 1401(a)(17).

The Eighth Circuit has not "shifted" any responsibility in this case. In contrast, it is requiring the District to use its substantial resources to provide needed related services under federal law for Garret F. to receive a free, appropriate public education. The District's attempt to plead poverty is not a matter of record in this case and should not be countenanced.

It should also be noted that in *Detsel v. Sullivan* (Detsel II), 895 F.2d 58, 59 (2nd Cir. 1990) the funding issue the District relies on was mooted for many, if not most, students when the United States Court of Appeals for the Second Circuit ruled Melissa Detsel was entitled to Medicaid payment for private-duty nursing while attending public school.

Respondent does concede that the Eighth Circuit's ruling, which follows *Tatro*, is in conflict with rulings of the Sixth and Ninth Circuits which failed to follow *Tatro*. It is also in conflict with a District Court decision in New York which was affirmed per curiam by the Second Circuit, *Detsel v. Board of Education of Auburn*, 820 F.2d 587 (2nd Cir. 1987).

Further, in contrast to the assertion on page 7 of the Petition, the record clearly establishes that the services here do not fall outside the range of traditional school nursing services. In fact,

virtually all of the services are currently being provided to other students within the District. While the Petitioner "demands this Court's immediate review" the fact of the matter is that other school districts are providing similar services at public expense. Tr. at 341-43; 364-65.

The purpose of the IDEA "was to rectify discrimination suffered by children with disabilities at the hands of public schools." *Conner v. Branstad*, 839 F. Supp. 1346, 1358 n.22 (S.D. Ia. 1993). Thus, the IDEA must "be broadly applied and liberally construed in favor of providing free and appropriate education to handicapped students." *S-1 v. Turlington*, 635 F.2d 342, 347 (5th Cir. 1981), *cert. denied*, 454 U.S. 1030.

Under Federal law, special education and related services are to be provided to the maximum extent appropriate with children who are non-disabled. 20 U.S.C. § 1412 (1993); 34 C.F.R. § 300.550. Iowa law provides that:

> to the maximum extent possible, children requiring special education shall attend regular classes and shall be educated with children who do not require special education. Whenever possible, hindrances to learning and to the normal functioning of children requiring special education within the regular school environment shall be overcome by the provision of special aids and services rather than by separate programs for those in need of special education. Special classes, separate school or other removal of children requiring special education from the regular educational environment, shall occur only when, and to the extent that the nature or severity of the

> educational handicap is such that education and regular classes, even with the use of supplementary aids and services, cannot be accomplished satisfactorily.

Iowa Code § 256B.2(3) (1993).

In *Independent School District v. Tatro*, 468 U.S. 883, 104 S. Ct. 3371, 82 L. Ed. 2d 664 (1984) the Supreme Court applied a two part inquiry to determine whether a given service is a related service under the IDEA: (1) is the supportive service necessary to enable a handicapped child to benefit from special education; (2) is the service excluded by the act as a "medical service" aside from any diagnostic or evaluation purpose. 468 U.S. at 890, 104 S.Ct. at 3375. There is no question that both elements are met here and the services needed are related services under the IDEA.

Under the bright line rule and holding of *Tatro*, in this case the services are related services and not medical services. In *Tatro*, the Court addressed and rejected a school district's claim that it had no responsibility to administer intermittent catheterization because it constituted a medical service. 104 S. Ct. at 3374. The United States Supreme Court determined that catheterization was a related service because it enabled a handicapped child to remain at school during the day and, thus, have meaningful access to education. *Id.* at 3377. The United States Supreme Court also determined that catheterization did not fall under the medical treatment exclusion of the statute or the Federal Department of Education's Rules. *Id.* It affirmed the Department's interpretation through ruling making that services of a school nurse would be required as a related service while treatment by a physician could be excluded. Dr. Reinertson's uncontroverted testimony that none of the services Garret needs require a physician means they are related services under *Tatro*.

In dicta, which later cases improperly extrapolated, the Court noted that a distinction between nursing services and treatment by a physician as a related service was reasonable. Part of the reasonableness was concluded to be a consideration of differentiation of costs between nursing and physician services and the fact that school nurses "have long been a part of the education system." *Id.* at 3378.

The Supreme Court did not say that cost was a factor to be considered by courts. It merely stated that Congress and the Department of Education may have used expense, as well as limitations of educators' expertise in medical matters, for making a distinction between nursing services and physician treatment as a related service. The Supreme Court expressly rejected the school's argument that services provided in accordance with a physician's prescription and general supervision fell within the medical treatment exclusion. It noted that nurses in the school were authorized to dispense medications and administer emergency injections to non-disabled students in accordance with a physician's prescription. *Id.* Thus, in *Tatro*, the Supreme Court affirmed a Congressional and administrative distinction between nursing services and medical treatment as a related service under the IDEA.

In contrast, the District's position is based on decisions from within the Second, Sixth and Ninth circuits. The logical problem with decisions such as these was well stated in *Macomb Co. School District v. Joshua S.*, 715 F. Supp. 824 (E.D. Mich. 1989):

> The difficulty the Court has with both *Detsel* and *Bevin* are their failure to adhere to certain principles developed in *Tatro*. Due to this failure, the decisions are not entirely clear as to whether the disputed services were

rejected as not representing "supportive services" under the EAHCA, or whether they fell within the "medical services" exclusion. Rather, *Detsel* concludes that while the disputed services did not actually meet the statutory and regulatory definition of medical services, given the regulation specifically addresses physician-performed services, denying the services "is in keeping with [the regulation's] spirit." 637 F.Supp. at 1022. The Court, however, believes that this conclusion ignores the spirit of the EAHCA itself. As *Tatro* repeatedly stressed, the reason for mandating the provision of supportive services under the EAHCA, is to guarantee handicapped students an opportunity to gain an education. If granting such an opportunity entails furnishing medically-related services short of requiring a licensed physician, we believe such services are the student's right. Moreover, the EAHCA, its legislative history, and its regulations are void of any suggestion that states are free to decide, on the basis of the cost and effort required, which related services fall within the medical services exclusion. The Court therefore rejects *Detsel*'s conclusion that services provided by a nurse, no matter how comprehensive, are medical services entitled to exclusion under the EAHCA.

Bevin reaches its result by holding that related services are only those that are "within reason," and that the proper determination involves a balancing of factors. Yet, *Bevin*'s

reliance on *Dept. of Educ., State of Hawaii v. Katherine D.*, 727 F.2d 809 (9th Cir. 1984), for this proposition is misplaced. In holding that a school district need only provide services within reason, *Katherine D.* was responding to the question of whether the EAHCA must provide a handicapped student "the best possible education." 727 F.2d at 813. This inquiry is entirely separate from the inquiry concerning the services necessary to provide a child "with meaningful access to education. . . ." *Tatro*, 468 U.S. at 891 (emphasis supplied). Certainly, the issue of the level of education required under the EAHCA will raise questions of balance. Yet, once a district determines the appropriate education, the problem of access must be examined within the framework supplied in *Tatro*. For this reason, we find *Bevin* of marginal precedential value.

It also should be noted that the dicta relied on by *Bevin H.* and *Detsel* "unduly expensive *and* beyond the range of their competence" is a two-pronged dicta, the later of which appears to have been overlooked by the District. In this case the evidence established that the services required are within the competence of the school nurses.

The District's statement that a "consensus" exists (page 12) omits any serious discussion of cases which find similar services to be related services: *Joshua S.; Tokaricik v. Forest Hill School District*, 665 F.2d 443 (3rd Cir.), *cert. denied*, 73 L. Ed. 2d 1383 (1981) (catheterization found to be a related service); *Dept. of Education v. Katherine D.*, 727 F.2d 809, 813 (9th Cir. 1984)

(tracheotomy care held to be a related service); Digest of Response, 20 IDELR at 174-75 (declaring the training on reversing a pattern associated with aspirating during feeding would be the responsibility of the education community); *Special School Dist. No. 6, St. Paul, Minn.*, 23 IDELR 119, 131 (1994) (both parties assume that tracheal suctioning must be provided by the district as a related service within the framework of providing a free, appropriate public education in the least restrictive environment, and the crux of the dispute is where and by whom people should be suctioned).

Another case bearing on the *Tatro* bright line rule is *Max M. v. Thompson*, 592 F. Supp. 1437, 1445 (N.D. Ill. 1984) (which held that psychotherapy, a recognized "related service" was not excluded even though in that case it was provided by a licensed physician). Psychotherapy and similar psychological services that other professionals can provide are required under § 1401(a)(17) and do not become non-reimbursable by virtue of their being performed by a psychiatrist. *Id.*

The logic of the district's cost-based approach collapses when it is considered that the "related services" identified in the Act includes such costly services as speech pathology and audiology, psychological services, physical and occupational therapy, recreation, medical and counseling services, except that such medical services shall be for diagnostic and evaluation purposes only. 20 U.S.C. § 1401(a)(17).

With respect to *Rowley*, it should be noted that the history of the IDEA is discussed including the Congressional Findings: Congress found that of the roughly 8 million handicapped children in the United States at the time of enactment, 1 million were "excluded entirely from the public school system" and more than half were receiving an inappropriate education. 458 U.S. at 189, 73 L. Ed. 2d at 701. That is precisely the case here

on the unrefuted record. In other words, if the services are not received, Garrett F. will not be able to attend school. (Tr. at 596-97).

The District's arguments concerning *Rowley*, a 1982 Supreme Court case, are not persuasive. First, *Rowley* preceded *Tatro* by two years and the opportunity Garrett F. seeks in this case is merely to get in the front door of the school and survive for the school day. He is not seeking some ultimate level of educational experience. The whole purpose of the IDEA is to make public education available to handicapped children and to make such access meaningful. *Tatro*, 468 U.S. at 891, 82 L. Ed. 2d at 672; *Rowley*, 458 U.S. at 192. "A service that enables a handicapped child to remain at school during the day is an important means of providing the child with the meaningful access to education that Congress envisioned." *Tatro*, 468 U.S. at 891, 82 L. Ed 2d at 672.

The District's argument at page 12 of its Petition on "shades of difference in the reasoning of these opinions" is not supported by the record in this case. For example, the District states "others emphasize the legal burden of being responsible for continuous, life-sustaining care." The District specifically disavowed this as a substantial basis for its position and placed it in terms of the liability for using a non-licensed provider, not liability for providing the services. (Tr. at 568-71). The third distinction distilled by the District, "still others highlight the gap between the services sought by the disabled child's parents and the 'school nursing services' traditionally provided by schools" is also without merit since as shown above, virtually all of the services have been provided and are being provided to other students in the District.

That leaves "a focus on the school's financial burden" as the only "shade of reasoning" left for the District. As set forth above, this ground fails based on the factual record in this case.

The Districts' citation to, Appendix D, a letter from the OSEP, adds little to the analysis other than the OSEP itself was unable to lay down a guideline applicable to all cases after considering the issue for two and a half years.

Finally, the District's argument on adverse policy consequences is not well-founded. The District again makes a number of unsupported assumptions in its cost arguments. First, it states that there are a "number of seriously disabled children" which would cause staggering costs. By contrast, the record in this a case is that the costs were de minimus and that there was only one other ventilator dependent child preparing to enter the district. (Tr. at 322). In fact, the District stated, "We're hoping to get him into the district." (Tr. at 322). There was no discussion as to the source of funding for that child. Again, the District complains of "tight budgets" and "limited sources of financing" without any support on the record. *See also Cremeans v. Fairland Local School District*, 91 Ohio App. 3d 668, 633 N.E. 2d 570 (Ohio App. 1993) (placement with $94,000 annual cost-out of $572,000 budget — required under IDEA).

The argument on page 18 concerning state sovereignty and states' rights raises a constitutional question that has not previously been addressed nor raised in this case. It could not possibly serve as an issue justify a grant of a Writ of Certiorari.

CONCLUSION

For these reasons, the Petition for Writ of Certiorari should be denied.

Respectfully submitted,

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